

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

HAPAG-LLOYD, A.G. AND HAPAG-LLOYD (AMERICA) LLC –
POSSIBLE VIOLATIONS OF 46 U.S.C. § 41102(C)

DOCKET NO. 21-09

Served: January 6, 2022

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

SCHEDULING ORDER

On November 10, 2021, the Commission issued an Order of Investigation and Hearing (“Order”) initiating this proceeding. On December 6, 2021, Respondents filed an answer. On December 16, 2021, the parties filed a joint status report with proposed schedule. On December 20, 2021, an order was issued rejecting the parties’ proposed schedule. On January 3, 2022, the parties filed a second joint status report (“JSR 2”) with a revised proposed schedule.

The second joint status report states that the parties agreed to limit discovery by setting a deadline for the service of initial discovery requests and a date for the commencement of depositions; agreed to limit each party to six virtually held depositions; agreed to limit discovery to one expert witness each, with written expert testimony only; agreed to conclude discovery on or before March 4, 2022; and have exchanged proposals to stipulate to facts. JSR 2 at 1-3. It is noted that Respondents reserve the right to challenge the lawfulness of the expedited schedule in this proceeding. JSR 2 at 2 n.1.

The discovery schedule proposed by the parties is reasonable and is adopted. The proposed briefing schedule is also adopted and the requirements for briefing are included below. The proposed schedule includes time for an oral hearing after the proposed briefing schedule. If an oral hearing is necessary, it would occur prior to briefing. The parties must file a joint status report on February 4, 2022, which identifies the basis for any requests for an oral hearing, any opposition arguments, an estimate of the number of witnesses expected to testify, and a proposed timeline. The joint status report should also summarize the progress that has been made and whether the parties have discussed settlement, but should not state the parties’ settlement positions.

The parties are hereby **ORDERED** to abide by the following schedule:

January 3, 2022	Deadline for service of Parties’ Initial Discovery Requests;
January 18, 2022	Deadline for Parties’ Responses to Initial Discovery Requests;
January 18, 2022	BOE’s Expert Witness Report Deadline;

January 19, 2022	Depositions to Commence;
February 2, 2022	Respondents' Expert Witness Report Deadline;
February 4, 2022	Depositions to Conclude and Parties file Joint Status Report;
February 7, 2022	Last Day to Serve Discovery Requests;
March 4, 2022	End of Discovery;
March 11, 2022	BOE's brief, findings of fact, and appendix deadline;
March 21, 2022	Respondents' brief, findings of fact, appendix, and response deadline;
March 25, 2022	BOE's reply brief deadline.

Any request for an extension will be reviewed for good cause, even if the parties agree on the requested extension. The parties are reminded that a "scheduling order 'is not a frivolous piece of paper, idly entered, which can be cavalierly disregarded by counsel without peril.'" *Johnson v. Mammoth Recreations, Inc.*, 975 F.2d 604, 610 (9th Cir. 1992) (quoting *Gestetner Corp. v. Case Equipment Co.*, 108 F.R.D. 138, 141 (D. Me. 1985)). Moreover, "[p]arties cannot control an agency's docket or procedures through agreement among themselves." *Simmons v. United States*, 698 F.2d 888, 893 (7th Cir. 1983). The authority of courts to control their dockets is well settled. *Link v. Wabash Railroad Co.*, 370 U.S. 626, 630-31 (1962); *United States v. Hughey*, 147 F.3d 423, 429 (5th Cir. 1998).

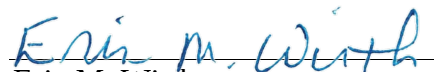
The parties' briefs, proposed findings of fact, responses to proposed findings of fact, and appendices shall be in the following forms:

1. **[Party's] Brief.** Each party shall file a brief meeting the requirements of Commission Rule 214, 46 C.F.R. § 502.214, with the exception that the proposed findings of fact and responses to the proposed findings of fact shall not count toward the page limit found in Rule 214(e). All filings must have page numbers.
2. **[Party's] Proposed Findings of Fact.** This document shall set forth proposed findings of fact in numbered paragraphs. Each paragraph shall be limited as nearly as practicable to a single factual proposition. Each factual proposition shall be followed by an exact citation to evidence that the party contends will support the proposed finding of fact; e.g., a page number in the appendix. The party shall provide to each other party and to the Office of Administrative Law Judges an electronic copy of its proposed findings of fact with the hard copy of its proposed findings of fact. The electronic copy shall be in a word-processing format (e.g., Microsoft Word) and provided by disk, flash drive, or email.
3. **[Party's] Responses to [Party's] Proposed Findings of Fact.** This document shall set forth verbatim each proposed finding of fact in another party's proposed findings of fact, then admit or deny the proposed finding. Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding

of fact. The opposing party shall provide to the party and to the Office of Administrative Law Judges an electronic copy of the response to [Party's] proposed findings of fact with the hard copies of the response to [Party's] proposed findings of fact. The electronic copy shall be in a word-processing format (e.g., Microsoft Word) and provided by disk, flash drive, or email.

4. **[Party's] Appendix.** The evidence on which a party's proposed findings of fact or response to another party's proposed findings of fact is based shall be included in an appendix.
 - a. The cover of the appendix shall identify the party or parties that prepared the appendix;
 - b. The appendix should be in one PDF document, if practicable. The pages of the appendix shall be numbered sequentially, for example CX 1, CX 2 or RX 1, RX 2, etc.;
 - c. The appendix must begin with a table of contents identifying the page at which each individual document begins and each exhibit should be clearly identified, for example by a cover sheet or bookmark;
 - d. Each party shall ensure that all documents in its appendix are legible and in English or include a verified translation as required by Rule 7 (see 502 C.F.R. § 502.7); and
 - e. The parties are instructed to cite to a document in an appendix already in the record rather than include the same document in its own appendix. For instance, if Respondent contends that a document included in Complainants' appendix rebuts the evidence Complainant claims supports a proposed finding of fact, Respondent shall cite to Complainants' appendix rather than include a second copy of the same document in its own appendix.

The parties are directed to consult with each other to determine the most practicable way to send electronic copies of documents in a word-processing format to each other. The parties are directed to send the electronic copy in a word-processing format of required documents to the Office of Administrative Law Judges at the following email address: judges@fmc.gov, with opposing counsel copied. Word processing versions should not be submitted to the Office of the Secretary.


Erin M. Wirth
Chief Administrative Law Judge